

D.Srinivasa Rao vs D.Vijaya Lakshmi on 9 June, 2023

Author: G. Radha Rani

Bench: Chillakur Sumalatha, G.Radha Rani

THE HONOURABLE Dr. JUSTICE CHILLAKUR SUMALATHA
AND
THE HONOURABLE Dr. JUSTICE G. RADHA RANI

FAMILY COURT APPEAL No.5 of 2012

JUDGMENT :

(per Hon'ble Dr. Justice G. Radha Rani) This appeal is filed by the appellant - petitioner - husband aggrieved by the order passed by the Judge, Family Court, Ranga Reddy District in O.P.No.1009 of 2008 dated 11.10.2011 for dismissing the petition filed by him for divorce on the ground of cruelty and desertion under Sections 13(1)(ia) and 13(1)(ib) of Hindu Marriage Act, 1955.

2. The case of the appellant - petitioner was that he was married with the respondent on 4-3-1990 according to Hindu rites and customs at Patancheru. The brother of the respondent's father Sri Rama Kotestwar Rao known to the petitioner's family brought the proposal for respondent's marriage with the petitioner. The petitioner and his parents agreed to the said proposal and marriage was performed accordingly. After the marriage, the respondent was brought to the house of the petitioner at Patancheru. The petitioner's mother and grandmother were 2 Dr.CSL,J & Dr.GRR,J also residing with them. In the month of April 1990, the respondent insisted the petitioner for separate living, but the petitioner refused as he was the sole male member of his family. Then the respondent used to go frequently to her parent's house at Guntur without informing the petitioner and would stay at her maternal house for a long period i.e., 3 to 4 months continuously. The petitioner and respondent were blessed with two daughters namely Sai Sowjanya and Gayathri Devi, aged 15 and 13 years respectively. The respondent never took their responsibility. She used to sleep the whole day and when the petitioner would return home, she used to disturb the petitioner whole night by murmuring and talking against his mother and grand mother. She harassed the petitioner mentally and never used to allow the petitioner to sleep and eat food peacefully. She used to pickup quarrel with the children, mother and grand mother of the petitioner for petty reasons. She tried to dominate the entire family. She wanted the petitioner's parents to go away from the house of the petitioner and used to shout on them without any reason and put all the family members to humiliation before the neighbours. They used to feel ashamed by the behavior of the respondent which caused mental harassment. The respondent left the house of the petitioner on 06.06.2003 by taking away 3 Dr.CSL,J & Dr.GRR,J the gold, silver articles and all her clothing like sarees, etc. which belonged to her without informing the petitioner. After that the petitioner made his best efforts through elders, well wishers and family members to get back the respondent to his house, but all his efforts went in vain. On the other hand, the respondent bluntly refused to come back to the petitioner. The petitioner suffered a lot due to the harassment of the respondent physically and mentally. The respondent agreed to give divorce by mutual consent on the condition

that she needed an amount of Rs.5,00,000/- for her welfare and that the children should stay with the petitioner. She further demanded to purchase a house for her at Guntur. The petitioner underwent mental agony. He was kept away from biological needs and due to constant degrading and cruelty subjected by the respondent, the petitioner suffered pain and it became impossible for him to continue in the relationship, as such, prayed to grant decree of divorce by dissolving the marriage between him and the respondent.

3. The respondent filed counter denying the petition averments. She submitted that there was a distant relationship between her family and the petitioner's family. Six months prior to the marriage, her brother gave 4 Dr.CSL,J & Dr.GRR,J an amount of Rs.60,000/- to the petitioner as dowry on demand by the petitioner to start mess by name "SAINATH TIFFIN CENTRE". Prior to that the petitioner used to work in Nagarjuna Steels at Patancheru as a casual labour along with the brother of the respondent. After marriage, the respondent's brother had given a further amount of Rs.60,000/- and 20 tolas of gold to the respondent. The petitioner constructed a house at Patancheru bearing No.8-155, J.P. Colony, Road No.1, Patancheru, Medak District with the said amount. Subsequently, the petitioner sold the jewellery and gold ornaments of the respondent for construction of first floor of the house. The respondent never whispered any single word even though the petitioner sold away her gold jewellery. The petitioner and his family members extracted her labour for running the Tiffin Centre. She used to work from 5:00 A.M. in the morning till 4:00 P.M. in the afternoon and from 7:00 P.M. in the evening to night 11.00 P.M. 3.1. She contended that in August, 2005, the petitioner dropped her at her mother's place in Amaravathi, Guntur District with wearing apparel without putting any single pie in her hand and assured that he would take back her, but in the meanwhile managed to marry Bhavani, who was 5 Dr.CSL,J & Dr.GRR,J working with him in his Electronic Shop. After that the petitioner never turned back. The petitioner taking advantage of her innocence deceived her and performed second marriage with Bhavani with whom he was having an extra marital affair causing mental harassment and cruelty to the respondent. The brother of the respondent tried his best to reconcile. He took the respondent to the petitioner's house in June, 2006. But the petitioner necked the respondent out of the house and did not allow her to enter the house and informed them that he already performed a second marriage and did not need her any more. The mother and the grand mother of the petitioner also supported the petitioner and they informed the brother of the respondent that if the respondent wanted she could stay with the old aged persons and lead her marital life as second wife and the children would be with Bhavani with whom the petitioner performed the second marriage. It was the petitioner who left the respondent to her fate, leaving her as a dependent on her brother and old parents, who were unable to support her. The petitioner left her in a pitiable position. The respondent approached the legal aid center for women, Andhra Mahila Sabha, Hyderabad for reconciliation in February, 2006 itself. But the matter could not be settled there. The Andhra Mahila Sabha Legal Aid 6 Dr.CSL,J & Dr.GRR,J Centre even summoned Bhavani, with whom the petitioner performed the second marriage. She also appeared and gave statement that she was not married with the petitioner and she was only a business partner. The proceedings continued till October, 2006 before the Legal Aid Centre and the petitioner clandestinely filed the present O.P.. She further contended that she was the victim of cruelty by the petitioner due to his act of marrying another woman by name Bhavani, during the subsistence of marriage with her, for which she lodged a complaint under Sections 494 & 498-A of IPC before P.S. Patancheru, Medak District. The present petition was filed only to legalise his illegal

and unlawful marriage with Bhavani and to get rid of her. The conduct of the Petitioner was not free from doubt and he was not entitled to seek divorce as prayed by him. 3.2. She further submitted that the petitioner was not even allowing the children to talk with her or to be with her and they were tutored by the petitioner. The petitioner was depriving the children the mother's affection which was needed most at their adolescent age. The girl children might be ill-treated by the step mother who might be having children with 7 Dr.CSL,J & Dr.GRR,J the petitioner and prayed to hand over the custody of the children and prayed to dismiss the petition filed by the petitioner for divorce.

4. Basing on the above pleadings, the Family Court framed the points for consideration as under:

a) Whether the petitioner is entitled for a decree of divorce on the ground of cruelty and desertion?

b) To what relief?

5. The petitioner examined himself as PW.1. The elder daughter of the petitioner and respondent, by name, Kum. Sai Sowjanya was examined as PW.2 and the junior paternal uncle of the respondent who settled the marriage between the parties by name Baira Rama Koteswar Rao was examined as PW.3. A marriage photograph and a wedding card were marked as Exs.P1 and P2. The respondent examined herself as RW.1 and got examined her brother Sri B. Sree Rama Chandra Murthy as RW.2 and her aunts Venkata Koteshwaramma and Dasari Bhuputri as RWs.3 and 4. RW.4 also acted as a mediator for conciliation between the petitioner and respondent in the year 2006. She got examined Smt. Vanaja, who was running a beauty parlour under whom the respondent 8 Dr.CSL,J & Dr.GRR,J worked as a trainee, as RW.5 and a customer who used to visit the tiffin centre as RW.6. She got marked four photographs showing the celebrations of her daughter's birthday as Exs.B1 to B4 and the income tax returns of the petitioner for the assessment year 2005-2006 and 2006-

2007 as Exs.B5 and B6.

6. On considering the oral and documentary evidence on record, the Family Court dismissed the petition observing that the petitioner failed to establish the grounds of cruelty and desertion on the part of the respondent.

7. Aggrieved by the said dismissal of the petition, the petitioner preferred this appeal contending that the Family Court not considering the evidence of PW.2, their elder daughter was unjustified, the court below ought to have seen that the petitioner - appellant had established the desertion on the part of the respondent, but the trial court did not give credence to the said aspect. The statement of respondent concerning the live in relationship between the petitioner and Bhavani was not proved. The court below ought to have allowed the petition. The reasons and findings of the Family Court were based on surmises which were not 9 Dr.CSL,J & Dr.GRR,J borne out by record, as such, unsustainable and prayed to allow the appeal by setting aside the order of the Family Court, Ranga

Reddy District in O.P.No.1009/2009 by granting the decree of divorce.

8. Heard Sri J.C. Francis, learned counsel for the appellant. Smt. D. Padmalatha, learned counsel for the respondent, failed to argue the matter even after taking several adjournments. Hence, her arguments were closed and we proceeded to decide the matter on merits.

9. Now the points for consideration in this appeal are:

I. Whether the appellant - petitioner - husband had established the grounds of cruelty and desertion in seeking the decree of divorce as pleaded by him? II. Whether the judgment of the Family Court in dismissing the petition filed by the appellant is sustainable? P O I N T Nos.I & II:

10. As per Section 13(1)(ia) of Hindu Marriage Act, if any person after solemnization of his or her marriage has treated the other with cruelty then that person could file a petition for divorce and as per Section 13(1)(ib) of Hindu Marriage Act, if one of the parties to the marriage has deserted the other for a continuous period of two years immediately 10 Dr.CSL,J & Dr.GRR,J preceding the present petition, then that person could file for divorce in the Court of law.

11. The explanation to the above sub-section describes the expression 'desertion' means desertion of the petitioner by the other party to the marriage without reasonable cause or without the consent or against the wish of that party and includes a willful neglect of the petitioner by the other party to the marriage.

12. Cruelty on the basis of which a party can seek for divorce could be either physical i.e., violent conduct causing pain to the other spouse or mental cruelty which makes it impossible to reasonably expect one spouse to put up with the conduct complained of and to live with the other. Cruelty had no fixed definition. To judge whether or not something is mental cruelty, the nature of cruel treatment has to be examined and the mental impact it has on the spouse and whether it causes reasonable apprehension in the mind of the spouse that it would be harmful or injurious for them to live with the other spouse need to be seen. Cruelty is a matter of inference to be drawn by taking into account the nature of the conduct and the effect it has on the complaining spouse.

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13. When dealing with such complaints of cruelty, it is important for the Court to consider the kind of life style the parties are used to, their economic and social conditions and the culture and human values to which they attach importance. While judging whether the conduct is cruel or not, what has to be seen is whether that conduct, which is sustained over a period of time, renders the life of the spouse so miserable as to make it unreasonable to make one live with the other. The conduct may take the form of abusive or humiliating treatment, causing mental pain and anguish, torturing the spouse, etc. The conduct complained of must be "grave" and "weighty" and trivial irritations and normal wear and tear of marriage would not constitute mental cruelty as a ground for divorce.

14. It is necessary to examine the evidence of the witnesses to see whether the conduct complained of amounts to mental cruelty or that it creates a reasonable apprehension in the mind of the petitioner that it would be harmful or injurious for him to live with the respondent.

15. The petitioner examined himself as PW.1. As per the petitioner, the respondent pressurized and insisted him for separate living within one month after his marriage with the respondent on 04.03.1990 12 Dr.CSL,J & Dr.GRR,J and that she used to frequently go to her parents' house at Guntur without informing him and his parents, and used to stay there for a period continuously for 3 to 4 months. He complained that the respondent never performed her duties and obligations neither as a wife nor as a mother and never took the responsibility of the welfare of the children. She used to sleep whole day and used to disturb him whole night and talk against his mother and grand mother and never allowed him to sleep and eat peacefully. She used to shout on him, his mother and his grandmother and humiliate them before the neighbours.

16. The respondent denied all such allegations and contended that she used to work from early morning 5:00 A.M. to 4:00 P.M. in tiffin centre run by the family and again from 7:00 P.M. to 11:00 P.M. by making preparations for the next day, the petitioner's mother was 60 years old and his grandmother was 75 years old, she used to look after her children in the evening and help them in their studies.

17. Even as per the petitioner, the respondent left his society on 06.06.2003. As such, both the petitioner and respondent lived together for a period of 13 years and had two daughters during the wedlock. If the 13 Dr.CSL,J & Dr.GRR,J contention of the petitioner that the respondent pressurized and insisted him for a separate living within one month after the marriage is true, then she would not have lived with him for a period of 13 years in the joint family. PW.1 in his cross examination admitted that there existed relationship between their two families. He admitted that his grandmother and the grandmother of the respondent were own sisters. He also admitted that his father-in-law was mentally unsound and his mother-in-law was an old aged woman and was suffering from ill-health. He also admitted that his brother-in-law was staying away from his parents due to his employment. It was suggested to him that due to the above circumstances, the respondent used to go to see her parents now and then, which was denied by the petitioner.

18. The said suggestion given to the witness would explain the circumstances of the family of the respondent that the father of the respondent was of unsound mind and the mother was an old aged woman suffering from ill-health and the brother of the respondent due to his employment was staying away from his parents. As such, the respondent might be visiting her parents now and then to take care of them which 14 Dr.CSL,J & Dr.GRR,J could not be considered as a circumstance that she was neglecting the petitioner or their children or mother and grandmother of the petitioner.

19. The petitioner admitted that in their Patancheru house they were running Sainath Tiffin Centre since 1986. He also admitted that he started Gayathri Electronics at Miyapur during the year 1995-1996 wherein he would sell TVs and other electronic goods.

20. The evidence of RW.6 would disclose that the respondent used to work in Sainath Tiffin Centre and he had seen her working in the tiffin centre and that he knew PW.1 and RW1 as husband and wife. He used to visit the tiffin centre thrice in a month.

21. Running a tiffin centre would need doing a lot of work. The respondent contended that she used to work from morning 5:00 A.M. to 11:00 P.M. in the night. The contention of the petitioner that the respondent used to sleep the whole day could not be considered as true, in view of his admission of running the tiffin centre at Patancheru.

22. In view of running the tiffin centre by the respondent, the mother and grandmother of the petitioner might have been attending to the 15 Dr.CSL,J & Dr.GRR,J children during the morning rush hours, but the same cannot be considered as a circumstance that the mother was neglecting the children and a ground for divorce.

23. The petitioner in his cross-examination denied that at the time of marriage, the parents of the respondent presented 20 tulas of gold and Rs.60,000/- cash, but again he admitted that the said 20 tulas of gold was with the respondent, which would show the contradiction in his evidence.

24. The petitioner stated that the respondent left his society on 06.06.2003 by taking away all her gold and silver articles and sarees which belonged to her, without informing him. He stated in his cross- examination that he had sent legal notice asking her to join him but had not filed any such notice before the court or had stated in his pleadings about giving such notice to the respondent or its particulars when he had given it, either in his petition or in his evidence affidavit. Without any pleading and without the details of such notice and not filing a copy of it, his evidence of sending legal notice to the respondent to join him would prove that the same was false and no reliance could be placed on such statement given by him.

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25. The respondent on the other hand contended that the petitioner dropped her at her parents' house in Amaravathi in Guntur District in August, 2005 with wearing apparel and assured that he would take her back, but married another woman by name Bhavani who was working with him in his electronic shop. She stated that her brother tried to reconcile the matter and in June, 2006, her brother took her to her matrimonial home but the petitioner necked her out and did not allow her to enter the house stating that he performed second marriage and he did not need her anymore. She further stated that the mother and grandmother of the petitioner also supported the petitioner and informed her that if she intended to stay, she could stay with the old aged persons, but the petitioner would be living with his second wife and children. She also got examined her brother as RW.2. His evidence corroborated with the evidence of the respondent (RW.1). He stated that it was the petitioner who deserted the respondent by marrying another women, but not vice- versa. Both the RWs.1 and 2 stated about the efforts made by them and approaching the Andhra Mahila Sabha legal aid centre for reconciliation in February 2006, and that the proceedings continued from February 2006 to 17 Dr.CSL,J & Dr.GRR,J October 2006 at the said place and a notice was issued to the petitioner and the alleged Bhavani and she also appeared before them.

26. Thus it was the respondent who made efforts for reconciliation and to live with the petitioner which would show that there was no animus on the part of the respondent to desert the petitioner and it was the petitioner who had an animus to desert the respondent and not allowed her to join his company.

27. The evidence of PW.3, the aunt of respondent would disclose that she was related to both PW.1 and RW.1 and she was the one who brought the mother and grandmother of PW.1 to Patancheru shown them livelihood and provided them with shelter. She and her husband were present at the time of marriage talks between PW.1 and RW.1. She had seen RW.1 working for Sainath Tiffin Centre and the tiffin centre was also started on her advice. RW.1 used to look after the children and household works and also the work of the tiffin centre. She further stated that PW.1 himself took RW.1 and dropped her at her parents' house in August, 2005, which was also her parents' place. She requested PW.1 to bring back 18 Dr.CSL,J & Dr.GRR,J RW.1 but he refused and informed that he married Bhavani and did not want to live with RW.1. and filed the present case in 2006.

28. RW.4 another aunt of the respondent stated that she acted as mediator in 2006 for reconciliation between PW.1 and RW.1. She went twice to the house of the petitioner. In August, 2005, PW.1 dropped the respondent at her parent's place at Amaravathi and got married another woman by name Bhavani. The same was informed to her by the petitioner. The mother and grandmother of the petitioner also supported him. She further stated that both the petitioner and respondent were related to her and as a relative she wished for their welfare and did not have any adverse interest against any of them. Nothing was elicited in the cross-examination of RWs.3 and 4 to disbelieve their evidence.

29. The daughter of the petitioner and the respondent was examined as PW.2. She filed her evidence affidavit supporting her father stating that since childhood she observed her mother always quarrelling with her father for petty reasons and used to demand for money to go to her parents' house at Amaravathi, Guntur District and was in the habit of 19 Dr.CSL,J & Dr.GRR,J frequently going to the said place and staying there for couple of months and on the instigation of her grandmother i.e., mother of the petitioner, the petitioner used to go and bring the respondent from her mother's house. She stated that she and her sister were looked after by her grand mother and her father but she hardly remember her mother looking after their welfare like coming to school, feeding them food, bathing and clothing them. She stated that her mother never used to cook food in the house and she always used to see her mother sleeping, there was no motherly attachment or any feelings towards her mother.

30. In her cross-examination, she admitted that her half-saree function was performed by her maternal uncle when she was seven years old. She became matured when she was studying VIII class which was during 2003-2004. When she attained puberty, her mother was not with her. She admitted in her cross-examination that if a wife required money for her expenses, she would ask her husband and her mother was also asking her father to give money for expenses. She also stated that her father filed a divorce case against her mother. When her mother came to the college, she did not talk to her. She denied the suggestion that several times when 20 Dr.CSL,J & Dr.GRR,J her mother came to the house to meet her, they closed the doors, but had not allowed her into the house.

31. It is very unfortunate for making the children to depose against their parents by taking sides towards one of them, in the matrimonial disputes between the parents. PW.2 being a daughter, who was in the custody of her father is not expected to speak against him. As such, the trial court rightly had not placed reliance on her evidence.

32. The petitioner got examined the junior paternal uncle of the respondent as PW.3 on his behalf. PW.3 stated that he was aware that his elder brother's daughter i.e., the respondent left the society of the petitioner on 06.06.2003 and since then they were living separately and the children were staying with the petitioner only and all the welfare measures of his daughters were being taken care of by the petitioner and his mother. His wife persuaded the respondent to join the society of the petitioner, but she refused to join, as such thereafter, they had not interfered in their life. But, he admitted in his cross-examination about the property disputes between him and the brother of the respondent. He admitted that a suit was filed by the brother of the respondent against him 21 Dr.CSL,J & Dr.GRR,J vide O.S.No.177 of 1993 on the file of Sub-Court, Narsaraopet in which he filed his written statement and contested the suit, but the said suit was disposed of as withdrawn. He also admitted that the mother of the respondent also filed a civil suit against him and the same was disposed as withdrawn. He denied that the petitioner helped in the case filed by him against his daughter-in-law.

33. Though PW.3 was a relative of the respondent, in view of the property disputes between him and the family of the respondent, his evidence could not be relied upon.

34. As seen from the above evidence, the petitioner failed to prove that the respondent by her conduct created an apprehension in his mind that it was harmful or injurious for him to live with her or that the respondent deserted him without any justifiable cause. The evidence on the other hand would prove that it was the petitioner, who deserted the respondent without any justifiable cause. As such, the trial court rightly disbelieved the allegations made by the petitioner against the respondent seeking divorce on the grounds of cruelty and desertion as pleaded by him. In view of the discussion of the above evidence, we do not find any 22 Dr.CSL,J & Dr.GRR,J illegality or impropriety in the orders of the Judge, Family Court, Ranga Reddy District in O.P.No.1009 of 2008 dated 11.10.2011 to set aside the same.

35. In the result, the Family Court Appeal is dismissed confirming the order dated 11.10.2011 in O.P.No.1009 of 2008 in dismissing the petition filed by the petitioner seeking divorce under Sections 13(1)(ia) and 13(1)(ib) of Hindu Marriage Act under the grounds of cruelty and desertion. No costs.

Miscellaneous Applications, if any pending, shall stand closed.

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